

Mark A. Garcia
7403 Creekbluff Dr
Austin, TX 78750
[REDACTED] . [REDACTED]

[Date: TBD]

NYOS Charter School
Attn: Public Information Act Request
12333 N Lamar Blvd
Austin, TX 78753
openrecords@nyos.org

Re: Texas Public Information Act Request — Request 4 of a series. Conflict-of-interest disclosure forms and related compliance records for fiscal years 2023, 2024, and 2025 (July 1, 2022 through June 30, 2025).

Dear Public Information Officer:

Pursuant to the Texas Public Information Act, Texas Government Code Chapter 552, and as applied to open-enrollment charter schools by Texas Education Code § 12.1051, I respectfully request the following public information from NYOS Charter School, Inc.

This is one of a planned series of narrowly-scoped requests. Submitting them in sequence is intended to ease your office's workload and to allow rolling production of records as they are located. The records sought below are limited to the specific subject described in the Re: line.

Records sought

For fiscal years 2023, 2024, and 2025 (i.e., July 1, 2022 through June 30, 2025):

1. All conflict-of-interest disclosure forms submitted by officers, directors, key employees, and key contractors of NYOS Charter School, Inc. during the period above. This includes, but is not limited to, disclosures by trustees, the Executive Director or Superintendent, the Chief of Schools, the Director of Finance, the Director of Operations, and any individual identified on Form 990 Part VII as an officer, director, or key employee.
2. Any annual conflict-of-interest questionnaire, attestation, or certification submitted by trustees, by the Executive Director or Superintendent, or by Dr. Alan Seay during his interim role (February 13 – June 27, 2024).
3. Any board-level review record, compliance-monitoring note, follow-up correspondence, or recusal record relating to those disclosures — including records showing how each reported conflict was reviewed, by whom, and how it was resolved.

4. Any record showing the basis on which NYOS answered “No” to **Form 990 Part IV, Line 28a** (business transaction with a current or former officer, director, or key employee) for fiscal year 2023, including any underlying analysis, related-party screening, or written determination relied upon for that answer.

Format and delivery

I request electronic copies of responsive records, delivered by email to the address above. Where original records exist only in physical form, electronic scans (PDF or comparable format) are acceptable.

Cost

Pursuant to Texas Government Code § 552.2615, please provide an itemized written estimate in advance of any charge that, in total, would exceed \$100.00. I am prepared to authorize production at or below that amount; above that figure, I ask to be contacted before work proceeds so that I may narrow the scope or authorize the additional cost.

Student and personal information

This request does not seek personally identifiable student information. To the extent any responsive record incidentally contains information governed by the Family Educational Rights and Privacy Act (FERPA), please redact that information and produce the remainder. Where individual home addresses, personal phone numbers, Social Security numbers, or driver's license numbers appear on conflict-of-interest forms, those personal identifiers may be redacted under Texas Government Code § 552.117 / § 552.130 / § 552.147 as applicable; the substantive content of each disclosure should still be produced.

Partial and rolling production

If any portion of this request is denied, withheld, or determined by NYOS to require an Attorney General ruling under Texas Government Code § 552.301, I respectfully ask that the remaining responsive records be produced on a rolling basis rather than the entire response being withheld pending resolution of any single category.

Acknowledgment

Please confirm receipt of this request at your earliest convenience. I understand that NYOS has 10 business days under § 552.221(d) either to produce the responsive records, certify a date by which production will occur, or seek an Attorney General ruling for any portion claimed exempt.

Thank you for your time and for the work your office does in fulfilling these requests.

Respectfully,

Mark A. Garcia

NYOS parent · *[Date: TBD]*

DRAFT